

25STCP03801 25STCP03801

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 25STCP03801 Hearing Date: September 2, 2026 Dept: 833

Jonathan T. Jackson, Case No. 25STCP03801

Hearing:

September 2, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833

Los Angeles County District Attorney's

Office Judge: Joseph Lipner

Order Denying Motion

for Reconsideration and Motion for Attorneys Fees

INTRODUCTION

Petitioner Jonathan T. Jackson ("Petitioner") moves to reconsider the Court's June 18, 2026 decision denying petition for writ of mandate.

Respondent Los Angeles County

District Attorney's Office ("Respondent") moves for an award of attorneys fees and costs in the amount of \$47,125.00.

The Court DENIES the motion for reconsideration. The Court DENIES the motion for attorneys fees.

BACKGROUND

A. Petitioner's Requests

Petitioner alleges that he, actor Kevin Hart, and others visited Las Vegas in August 2017. (Busch Decl., ¶ 2, Exh. B, ¶ 24.) There were allegations of Hart having an extramarital affair with a third party, and someone had recorded a sex tape of them while in Las Vegas. (Busch Decl., ¶ 2, Exh. B, ¶ 24.) An attempt to extort Hart for \$5 million with the tape was made via Instagram in September 2017. (Busch Decl., ¶ 2, Exh. B, ¶ 36.)

County District Attorney Investigator

Robin Letourneau initiated an investigation into the \$5 million extortion demand. (Busch Decl., ¶ 2, Exh. B, ¶ 26; Ex. C, ¶ 41.) As part of that investigation, Petitioner's home was searched and items seized pursuant to a warrant. (Busch Decl., ¶ 2, Ex. B, ¶¶ 26, 28.) Those searches revealed, among other things, that IP addresses relating to emails trying to sell the tape, boasting he was the only one with knowledge of the tape, belonged to Petitioner. (Request for Judicial Notice ("RJN"), Ex. I (Magistrate Court Order), 4:19-5:28, 9:17-10:13, 24:22-24.)

On April 27, 2018, a third party sent Hart an email demanding a deposit of 20 Bitcoin. (RJN, ¶ 4, Exh. J, 5:15-17; Busch Decl., ¶ 2, Exh. C, ¶ 37.) Petitioner claims in his federal action that he was arrested "based solely on an alleged extortion email sent to Kevin Hart on April 27, 2018, demanding 20 Bitcoin" that was allegedly fabricated. (Busch Decl., Exh. C, ¶¶ 37, 48.)

Petitioner requested a declaration from the Los Angeles County District Attorney's Office ("Respondent") describing (1) the reasonable search conducted for the April 27, 2018 email described in the CPRA request and stating whether any such record was located; and (2) the categories of record systems consulted, date ranges checked, and general nature of the process. (Opening Brief, April 15, 2026, 2:8-15.)

On June 18, 2026, the Court denied the petition for writ of mandate in its entirety.

MOTION FOR

RECONSIDERATION

A.

Legal Standard

Code of Civil Procedure Section 1008, subd. (a) states:

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

The Court also has inherent powers to reconsider previous interim orders pursuant to *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1096–1097 (*Le Francois*).

B.

Petitioner has identified a one-word clerical error which the Court will correct in a nunc pro tunc order

Petitioner's motion for reconsideration emphasizes that the Court used the wrong word in the governing legal standard for California Public Records Act ("CPRA") cases. Petitioner has accurately identified a clerical error in the Court's ruling. The Court will correct it through a nunc pro tunc order. Doing so merely corrects a typographical mistake and does not change the outcome.

On

page 5 of its ruling, the Court wrote the word "knowledge" when it should have written "possession." The Court accurately cited the correct legal standard on page 2 of the ruling as follows:

To prevail on a CPRA petition, the petitioner must

establish that the documents (1) qualify as public records and (2) are possessed by the agency. (Board of Pilot Commissioners v. Superior Court (2013) 218 Cal.App.4th 577, 597-598. (Board of Pilot Commissioners).) "Possession" means both actual and constructive possession. (Consolidated Irrigation Dist. v. Superior Court (2012) 205 Cal.App.4th 697, 710.) "[A]n agency has constructive possession of the records if it has the right to control the records, either directly or through another person." (Ibid.)

(Order Denying Petition
for Writ of Mandate, June 18, 2026, p. 2.)

The typographical mistake
discussing the same standard appears on page 5:

In the context of CPRA cases, Petitioner must establish that a governmental agency has both actual and constructive knowledge of the record. (Anderson-Barker v. Superior Court (2019) 31 Cal.App.5th 528, 538.) An agency has constructive possession of a record if it has the right to control the records directly or through another person. (Ibid.)

(Order Denying Petition
for Writ of Mandate, June 18, 2026, p. 5.)

The Court will sua sponte correct this error,
which is clerical and non-substantive.

The
inadvertent use of the word "knowledge" did not affect the Court's reasoning.
In the remaining paragraphs on Page 5, the Court is discussing "possession"
when analyzing whether the requested record was in the County's possession:

"Petitioner presents evidence that on April 30, 2018,
the day of Petitioner's arrest, DA Investigator Letourneau stated she had
possession of the email.

...

Petitioner has not met his burden to show that the
records are in the County's constructive possession. Therefore, Petitioner is
not entitled to relief on a CPRA petition."

(Order Denying Petition
for Writ of Mandate, June 18, 2026, p. 5.)

Neither party argues in the briefing on the motion for reconsideration that changing the word “knowledge” to “possession” will have any impact on the Court’s overall analysis or the outcome of this case.

Accordingly, the Court will issue a nunc pro tunc correction of its June 18, 2026 Order that deletes the following sentence on page 5 of its ruling: “In the context of CPRA cases, Petitioner must establish that a governmental agency has both actual and constructive knowledge of the record.” The correction will replace it with: “In the context of CPRA cases, Petitioner must establish that a governmental agency has both actual and constructive possession of the record.”

C.
Petitioner’s argument that the Court should have considered the “used” prong is not a basis for reconsideration

Petitioner argues that the Court should have considered the “used” prong of Section 7920.530, subd. (a). Petitioner does not offer any new facts, law, or circumstances which indicate that this is an appropriate grounds for a motion for reconsideration.

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party seeking reconsideration must provide evidence but also a satisfactory explanation for the failure to provide that evidence at an earlier time. (Pazderka v. Caballeros Dimas Alang, Inc. (1998) 62 Cal.App.4th 658, 670.) At the time of the June hearing, Petitioner had all of the evidence he cites to in his briefing on the motion for reconsideration. Therefore, Petitioner cannot provide a satisfactory explanation for the delay in raising the arguments he now raises on the motion for reconsideration.

Contrary
to Petitioner’s argument, the Court discussed the “used” prong of the definition of a public record. On Page 4 of the Order Denying Petition for Writ of Mandate, the Court stated:

Petitioner argues on reply that Investigator

Letourneau incorporated the email into official investigative reports, so it is a public record. This argument relies heavily on evidence submitted with the reply brief that was not timely. Moreover, even if the email were discussed in investigative reports, no case law provides that this transforms the private email itself into a public record.

(Order Denying Petition

for Writ of Mandate, June 18, 2026, p. 4.)

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fundamental problem with Petitioner's arguments, both on reconsideration and in the original petition briefing, is that Petitioner simply failed to make the requisite showing about the document that would entitle him to relief. To prevail on a CPRA petition, the petitioner must establish that the documents (1) qualify as public records and (2) are possessed by the agency. (Board of Pilot Commissioners, *supra*, 218 Cal.App.4th at pp. 597-598.) To put the matter plainly: Petitioner failed to address these baseline issues at all in his opening brief. (See Petitioner's Opening Brief filed 4/15/2026.) Instead, Petitioner argued almost exclusively about the declaration he wanted Respondent to prepare—relief to which he is not entitled as a matter of law. (Id. pp. 5-9 [argument section of Petitioner's brief].) Petitioner simply failed to meet his burden. Petitioner's current arguments on reconsideration are part of the effort to fill in the gap and attempt to make a showing on both prongs of the fundamental test. It is too late in the day to do so and not an appropriate use of the reconsideration process.

D.

Petitioner's argument that the CPRA possession standard is disjunctive rather than conjunctive is not a basis for reconsideration.

Petitioner argues that the

Court misinterpreted the law regarding actual and constructive possession. Specifically, Petitioner contends that there is no requirement that Petitioner prove both actual and constructive possession simultaneously. (Motion, 7:12-23.)

First,

even if this were a proper reconsideration argument, it would not result in a change of outcome. As discussed above and in its order on Page 4, Petitioner

has not shown that the April 27, 2018 email is a “public record” as defined under the CPRA. Since Petitioner has not satisfied the first element of the test in Board of Pilot Commissioners, any change in the Court’s analysis on the second element would have no impact on the overall outcome of this case.

Moreover,
raising the legal issue about “possession” is not grounds for a reconsideration motion. A motion for reconsideration cannot be brought on the basis that the court made an error of law. (David S. Karton, a Law Corp. v. Musick, Peeler Garrett LLP (2022) 83 Cal.App.5th 1027, 1048-1049.)

And
even if Petitioner could satisfy the Board of Pilot Commissioners test, Petitioner primarily seeks relief that the Court cannot grant. (Order Denying Petition for Writ of Mandate, June 18, 2026, pp. 5-6 [explaining that there is no law allowing the Court to require a declaration if one does not already exist].)

MOTION FOR ATTORNEYS FEES

A. Legal Standard

Government

Code section 7923.115, subd. (b) provides that a “court shall award court costs and reasonable attorney’s fees to the public agency if the court finds that a requester’s case is clearly frivolous.”

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requestor’s case is “clearly frivolous” when it is prosecuted for an improper motive or when lacking any merit. (Crews v. Willows Unified School Dist. (2013) 217 Cal.App.4th 1368, 1381.)

B.

Judicial Notice

The Court GRANTS all requests for judicial notice
“RJN”.

C.

Evidentiary Objections

The Court overrules the evidentiary objections.

D.

This case, while non-meritorious, was not frivolous

Respondent's

main argument that Petitioner's case wholly lacked merit relies on the assertion that Petitioner was only seeking a declaration from the County, and that this relief is foreclosed as a matter of law. Respondent relies on authority holding that no such relief is available: "The judicial remedy set forth in the CPRA is available only to a person or entity who is seeking disclosure of public records and only where the public entity is allegedly improperly withholding those records... The CPRA provides no judicial remedy for any other person or entity or a remedy that may be utilized for any purpose other than to determine whether a particular record or class of records must be disclosed." (County of Santa Clara v. Superior Court (2009) 171 Cal.App.4th 119, 127.)

The

problem is that the specifics of what Petitioner was seeking in this case were more muddled and complicated than Respondent's argument acknowledges. While not always clearly articulated by Petitioner, Petitioner was also seeking production of a document, if that document existed. Thus, Petitioner's petition stated: "Petitioner primarily seeks a sworn declaration confirming whether the Original April 27, 2018 Email exists, but also requests disclosure of records to ensure full transparency." (Petition at 11:16-18.) The Petition sought "All requested records, with only legally exempt portions redacted, including the April 27, 2018, email and related metadata." (Id. at 12:3-4.)

Respondent

argues that Petitioner admitted that his Petition sought only a declaration from this statement in the reply brief: "Petitioner seeks only a sworn declaration from a competent records custodian identifying what search was conducted and what was found." (RJN, ¶ 6, Ex. K, 9:20-21, emphasis added) However, the very next sentence states:

"If a responsive record exists, the Court may evaluate any asserted exemption through appropriate confidentiality-preserving procedures, including

in camera review.” (Id. at 9:21-23.) Similarly, a third question in the “issues presented” section of the opening asked whether a Court can review documents to determine whether a record properly falls within the claimed exempt category. (Petitioner’s Opening Brief of April 15, 2026, p. 3.)

The

confusion about this issue is understandable, given Petitioner’s heavy and near-exclusive emphasis on his request for a declaration. Petitioner, however, is not the only litigant in a CPRA case to desire some sort of sworn statement; in certain cases, the respondent voluntarily provides a declaration. (See *Rackauckas v. Superior Court* (2002) 104 Cal.App.4th 169, 172-173; *Haynie v. Superior Court* (2001) 26 Cal.4th 1061, 1074 [“We have no doubt that an agency may elect to create such a list . . . ”].) One way of analyzing Petitioner’s arguments is that Petitioner was seeking a document to the extent it exists, and attempting to incentivize Respondent to provide a declaration if it did not. While the request lacked merit, it was not frivolous.

Respondent

also argues that attorneys fees are warranted because private nongovernmental records are not subject to the CPRA and this case involved a private nongovernmental record. The Court disagrees. Whether a record is sufficiently related to public business will involve an examination of several factors, including “the content itself; the context in, or purpose for which, it was written; the audience to whom it was directed; and whether the writing was prepared by an employee acting or purporting to act within the scope of his or her employment.” (*City of San Jose v. Superior Court* (2017) 2 Cal.5th 608, 618.) Petitioner argued in reply that because the email was used as the basis for an official law enforcement action, that converted it into a public record. While the Court did not agree with this argument, the Court does not find this argument to be clearly frivolous such that fees should be awarded.

Respondent

also argues that Petitioner was seeking public records for the purpose of advancing unrelated civil litigation. This is not a reason why a CPRA case is clearly frivolous. When making a CPRA request, a party may wish to embarrass a governmental agency, sue a governmental agency, praise a governmental agency, or do anything in between. Whatever the case, a government agency cannot deny a request for documents because of the motive it suspects a party has or what a party intends to do with those documents. The only question is whether a document qualifies as a public record and if it does, whether there is some

exemption that prevents the record from being released.

CONCLUSION

The Court DENIES
the motion for reconsideration. The Court DENIES the motion for attorneys fees.

IT IS SO ORDERED.

Dated: September
2, 2026

Joseph
Lipner

Superior
Court Judge